EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 41609/10
Ülkü AKKAŞ ÇETİNKAYA and Tulya SÖNMEZ AYTEKİN
against Turkey

The European Court of Human Rights (Second Section), sitting on 16 May 2017 as a Committee composed of:

Ledi Bianku, *President,*
Paul Lemmens,
Jon Fridrik Kjølbro, *judges,*

and Hasan Bakırcı, *Deputy Section Registrar,*

Having regard to the above application lodged on 14 June 2010,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. The applicants, Ms Ülkü Akkaş Çetinkaya and Ms Tülya Sönmez Aytekin, are Turkish nationals, who were born in 1966 and 1968 respectively and live in Ankara. They were represented before the Court by Mr C. Erkat, a lawyer practising in Ankara.

2. The Turkish Government ("the Government") were represented by their Agent.

3. The applicants complained that the disciplinary sanction of warning imposed on them for taking part in a demonstration had infringed their right to freedom of association. They further complained about the absence of a domestic remedy to challenge these disciplinary sanctions. In this connection, they relied on Articles 6 § 1, 11 and 13 of the Convention.

4. On 14 October 2013 the applicants' complaints were communicated to the Government.

5. By a letter dated 27 May 2014, the applicants were invited to submit their claims for just satisfaction. No reply was received.

6. By a letter dated 15 July 2015, the applicants and the Government were invited to submit any comments on whether they wished to reach a friendly settlement in the case by 17 August 2015 at the latest.

7. On 5 August 2015 the Government accepted the proposal and the terms of the declaration. No reply was received from the applicants' representative and no extension was requested.

8. By a letter dated 16 November 2015, sent by registered post, the applicants' representative was further notified that the period allowed for submission of their observations had expired on 17 August 2015 and that no extension of time had been requested. The applicants' representative's attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike a case out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. The applicants' representative received this letter on 3 December 2015. However, no reply was received to the Registry's letter.

THE LAW

9. The Court considers that, in these circumstances, the applicants may be regarded as no longer wishing to pursue their application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

10. In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 15 June 2017.

Hasan Bakırcı
Deputy Registrar

Ledi Bianku
President